being North four degrees and forty-eight minutes East (N. 4°48′ E.) a distance of seven hundred and ninety-one (791) feet from an iron pin at the southwest corner of said section 6; thence along the said west right of way line of the relocation, the following three (3) courses, first, parallel to and thirty-five (35) feet northwesterly from the centerline of the said relocation, South fifty-six degrees and sixteen minutes West (S. 56°16′ W.) one hundred and seventeen and seventeen hundredths (117.17) feet, thence along an offset, North thirty-three degrees and forty-four minutes West (N. 33°44′ W.) fifty (50) feet, and thence South fifty-six degrees and sixteen minutes West (S. 56°16′ W.) two hundred and fifty feet (250) feet, thence along the said west right of way line of the relocation, the following five courses, first, along the said offset South thirty-three degrees and forty-four minutes East (S. 33°44′ E.) fifty (50) feet, thence parallel to and fifty (50) feet northwesterly from the centerline of said relocation, South fifty-six degrees and sixteen minutes West (S. 56°16′ W.) three hundred (300) feet, thence along an offset South thirty-three degrees and forty-four minutes East (S. 33°44′ E.) fifteen (15) feet, thence South fifty-six degrees and sixteen minutes West (S. 56°16′ W.) two hundred and twenty-eight and forty-nine hundredths (228.49) feet, and thence along a curve to the left having a radius of one thousand six hundred and seventy-three and one-tenth (1673.1) feet for a distance of three hundred and thirty-one and three-tenths (331.3) feet to the south line of Lot 31, thence North eighty-five degrees and seven minutes West (N. 85°07′ W.) ninety-seven and ninety-five hundredths (97.95) feet to the point of beginning, exclusive of the right of way of the original location of the Pennsylvania Railroad, containing in all 136.81 acres.

(2) The Secretary of the Interior shall take such action as may be necessary to protect the United States from loss of oil and gas on account of drainage from such land.

(3) The jurisdiction of the Department of the Interior over such land shall be subject to the primary jurisdiction of the War Department over the land.

(4) All money received as royalties or otherwise on account of oil and gas extracted from such lands shall be paid into the Treasury of the United States and credited to miscellaneous receipts.

G. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 19, 1947.

[F. R. Doc. 47-7936; Filed, Aug. 25, 1947; 8:49 a. m.]

[Public Land Order 396[1]]

ALASKA

MODIFYING EXECUTIVE ORDER NO. 1919½ OF APRIL 21, 1914, AS AMENDED, WHICH WITHDRAWS CERTAIN LANDS FOR TOWNSITE PURPOSES, AND EXCLUDING CERTAIN LANDS FROM THE CHUGACH NATIONAL FOREST

By virtue of the authority vested in the President by section 1 of the act of March 12, 1914, 38 Stat. 305, 307, (U. S. C., Title 48, secs. 303 and 304), and by the act of June 4, 1897, 30 Stat. 11, 36 (U. S. C., Title 16, sec. 473), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described lands at Passage Canal (Portage Bay) are hereby reserved for the use of the Alaska Railroad as a Terminal Reserve and Executive Order No. 1919½ of April 21, 1914, as amended by Public Land Order No. 219 of March 28, 1944 (43 CFR, 1944 Supp., Chap. I, App.), which reserves certain lands for townsite purposes is modified accordingly:

Beginning at Corner No. 1 identical with Corner No. 1 of U. S. Survey No. 2559, Whittier Townsite, Alaska, from which survey station 24 plus 44.45 in the center line of The Alaska Railroad, Passage Canal connection bears N. 11°09′ E., 250.65 feet, and U. S. L. M. No. 2559 bears S. 78°51′ E., 971.83 feet, latitude 60°46′30″ N., longitude 148°43′20″ W.

From the initial point,

South, 1625.78 feet to Corner No. 2, identical with Corner No. 2 of U. S. Survey No. 2559;

West, 200.00 feet to Corner No. 3;

North, 615.38 feet to Corner No. 4;

N. 28°00′ W., 1393.46 feet to Corner No. 5, from which survey station 33 plus 25.00 in the center line of the main track of the Alaska Railroad bears N. 11°09′ E., 200.00 feet;

Northwesterly 1275.80 feet, 200 feet from, and parallel to, the center line of the main track, to Corner No. 6, from which a point in the center line of the main track at the station equation 46 plus 28.75 equals 46 plus 43.25 bears N. 3°09′ E., 200 feet;

N. 3°09′ E., 100.00 feet, to Corner No. 7;

Southwesterly, 2504.26 feet, 100 feet from, and parallel to, the center line of the main track, to Corner No. 8, from which survey station 70 plus 00 bears N. 55°14′ E., 185.95 feet;

S. 55°14′ W., 692.06 feet to Corner No. 9;

N. 71°18′ W., 640.00 feet to Corner No. 10;

S. 78°42′ W., 1760 feet to Corner No. 11;

N. 38°16′ W., 825.46 feet to Corner No. 12; from which survey station 104 plus 00 bears N. 18°42′ E., 980.00 feet;

N. 18°42′ E., 3116.27 feet to Corner No. 13;

East 1320.00 feet to Corner No. 14;

S. 73°00′ E., 860.00 feet to Corner No. 15, a point on the mean high water line, Passage Canal;

Southeasterly, 3500 feet, along the line of mean high water, Passage Canal, to Corner No. 16, from which survey station 66 plus 00 in the center line of the main track, Alaska Railroad, bears S. 16°33′ E., 100 feet;

Northeasterly, 1991.22 feet, 100 feet from, and parallel to, the center line of the main track, to Corner No. 17, from which a point in the center line of the main track at the station equation 46 plus 28.75 equals 46 plus 43.25 bears S. 3°09′ W., 100 feet;

N. 3°09′ E., 100 feet to Corner No. 18;

Southeasterly 1467.64 feet, 200 feet from, and parallel to, the center line of the main track, to Corner No. 19, a point on the mean high water line, Passage Canal, from which survey station 31 plus 89.00 bears S. 11°09′ W., 200. feet;

Easterly, 4050.00 feet, along the line of mean high water, Passage Canal, to Corner No. 20, from which survey station 3 plus 00.00 in the center line of the main track bears S. 3°52′ E., 115.00 feet, and 100.00 feet from the center line of No. 1 Dock Track;

Northeasterly, 3913.29 feet, 100 feet from, and parallel to, the center line of No. 1 Dock Track and a prolongation thereof, to Corner No. 21, a point on the mean high water line, Passage Canal;

Northeasterly and southerly, 940.00 feet, along the line of mean high water, around a point of land and across the mouth of Cove Creek, to Corner No. 22, a point on the east boundary of Passage Canal Townsite withdrawal described in Executive Order No. 1919½, April 21, 1914, from which Corner No. 7, U. S. Survey No. 2559 bears south 1204.88 feet and west 2032.85 feet;

South 1370.00 feet, along the east boundary of townsite withdrawal, to Corner No. 23;

West 1920.00 feet to Corner No. 24, from which Corner No. 7, U. S. Survey No. 2559 bears N. 34°21′ W., 200.00 feet;

N. 34°21′ W., 640.00 feet to Corner No. 25, identical with Corner No. 8, U. S. Survey No. 2559, from which survey station minus 11 plus 96.34 in the center line of the main track, bears N. 34°21′ W. 200. feet;

S. 55°39′ W., 1565.74 feet, to Corner No. 26, identical with Corner No. 9, U. S. Survey No. 2559;

N. 78°51′ W., 2298.48 feet to Corner No. 1, the point of beginning.

The tract as described contains 382.24 acres.

The above-described lands, and those designated as United States Survey No. 2559 of Whittier Townsite, comprising 72.72 acres, are hereby excluded from the Chugach National Forest, established by the Proclamation of July 23, 1907, 35 Stat. 2149. This order shall not affect valid existing rights.

C. GIRARD DAVIDSON,
Acting Secretary of the Interior.

AUGUST 19, 1947.

[F. R. Doc. 47-7938; Filed, Aug. 25, 1947; 8:44 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[4th Rev. S. O. 180, Amdt. 16]

PART 95—CAR SERVICE

DEMURRAGE ON REFRIGERATOR CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 20th day of August A. D. 1947.

Upon further consideration of Fourth Revised Service Order No. 180 (49 CFR 95.330) as amended (10 F. R. 14970; 11 F. R. 1627, 1991, 3605, 4038, 9453, 10091, 11707, 12395; 12 F. R. 1421, 3032, 3672, 4028, 4269, 4720), and good cause appearing therefor: *It is ordered*, That:

Fourth Revised Service Order No. 180, as amended, be, and it is hereby suspended from 7:00 a. m., August 25, 1947, until further order of this Commission. In lieu thereof the rules, regulations and charges provided in lawfully-published tariffs shall apply.

It is further ordered, That a copy of this order and direction shall be served upon each State Commission and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

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[1] For notice for filing objections, see Bureau of Land Management, Department of the Interior, Notices section, *infra*.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)–(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 47–7947; Filed, Aug. 25, 1947; 8:45 a. m.]

[Rev. S. O. 188, Amdt. 14]

PART 95—CAR SERVICE

REFRIGERATOR CAR DEMURRAGE ON STATE BELT RAILROAD OF CALIFORNIA

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 20th day of August, A. D. 1947.

Upon further consideration of Revised Service Order No. 188 (49 CFR, 95, 334) as amended (10 F. R. 15175, 11 F. R. 1626, 3605, 4038, 7043, 9453, 10092; 12 F. R. 1420, 3033, 3672, 3673, 4269, 4720), and good cause appearing therefor: *It is ordered*, That:

Revised Service Order No. 188, as amended, be, and it is hereby suspended from 7:00 a. m., August 25, 1947, until further order of this Commission. In lieu thereof the rules, regulations and charges provided in lawfully-published tariffs shall apply.

It is further ordered, That a copy of this order and direction shall be served upon the California State Railroad Commission and upon the State Belt Railroad of California; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U. S. C. 1 (10)–(17))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 47–7946; Filed, Aug. 25, 1947; 8:45 a. m.]

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR, Part 43]

FLIGHT AREA LIMITATIONS

NOTICE OF PROPOSED RULE MAKING

AUGUST 20, 1947.

Part 20 of the Civil Air Regulations provides that graduates of certificated flying schools be permitted privileges of exemption from certain requirements of that part which otherwise would be applicable. Such privileges are accorded in view of the high standards of personnel, equipment, and curriculum required for certificated flying schools and the specialized instruction thus afforded.

In view of such existing requirements, proposal is herein made to permit a student pilot in a certificated flying school to operate an aircraft outside of a local flying area designated by his instructor, prior to having acquired 10 solo flight hours, when he is deemed competent to do so by the flying school concerned. The proposed amendment will expedite student training in certificated flying schools, particularly in cases involving flight instruction in two-control aircraft, without adversely affecting existing safety standards.

Pursuant to section 4 (a) of the Administrative Procedure Act the Safety Bureau of the Civil Aeronautics Board will recommend to the Board that the following amendment to the Civil Air Regulations be adopted with an effective date 30 days after the date of adoption:

Amend § 43.52, *Flight area limitations*, to read as follows:

§ 43.52 *Flight area limitations.* A student shall not pilot an aircraft outside a local flying area designated by his flight instructor until:

(a) He has had at least 10 solo flight hours or, if enrolled in and receiving flying instruction from an approved air agency, he is deemed competent by such agency, and

(b) His student pilot certificate has been appropriately endorsed by a flight instructor.

This regulation is proposed under authority of Title VI of the Civil Aeronautics Act of 1938, as amended.

The Safety Bureau requests written comment regarding this proposal to be submitted to the Safety Bureau, Civil Aeronautics Board, Washington 25, D. C., within 15 days from the date of this public notice.

(52 Stat. 984, 1007; 49 U. S. C. 425, 551)

By the Safety Bureau.

[SEAL] JOHN M. CHAMBERLAIN, *Acting Director.*

[F. R. Doc. 47–7948; Filed, Aug. 25, 1947; 8:46 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Misc. 1606472]

ALASKA

AMENDMENT OF NOTICE OF FILING PLATS OF SURVEY ISSUED JULY 29, 1947

AUGUST 18, 1947.

The first paragraph and paragraph (c) of the notice of filing of plats of survey in Alaska, covering T. 5 N., R. 8 W., Seward Meridian, and other townships and parts of townships (12 F. R. 5311), are amended by eliminating the word "settlement" where it occurs in each of such paragraphs.

FRED W. JOHNSON, *Director.*

[F. R. Doc. 47–7933; Filed, Aug. 25, 1947; 8:49 a. m.]

ALASKA

NOTICE FOR FILING OBJECTIONS TO PUBLIC LAND ORDER 396[1] RESERVING PUBLIC LANDS FOR USE OF ALASKA RAILROAD

Notice is hereby given that for a period of 30 days from the date of publication of this notice, persons having cause to object to the terms of Public Land Order 396, of August 19, 1947, reserving certain lands withdrawn for townsite purposes for the use of The Alaska Railroad as a Terminal Reserve, at Passage Canal (Portage Bay), and excluding such lands and those designated as United States Survey No. 2559 of Whittier Townsite, from the Chugach National Forest, may present their objections to the Secretary of the Interior. Such objections should be in writing, should be addressed to the Secretary of the Interior, and should be filed in duplicate in the Department of the Interior, Washington 25, D. C.

In case any objection is filed and the nature of the opposition is such as to warrant it, a public hearing will be held at a convenient time and place, which will be announced, where opponents to the order may state their views and where the proponents of the order can explain its purpose, intent and extent. Should any objection be filed, whether or not a hearing is held, notice of the determination by the Secretary as to whether the order should be rescinded, modified or let stand will be given to all interested parties of record and the general public.

C. GIRARD DAVIDSON, *Acting Secretary of the Interior.*

AUGUST 19, 1947.

[F. R. Doc. 47–7937; Filed, Aug. 25, 1947; 8:44 a. m.]

[1] Title 43, Appendix, *supra.*